PROMISE & PRACTICE · DEEP DIVE · SOURCE ANALYSIS

Dred Scott — House & Divided

What the Court Actually Said

Name: _____ **Period:** _____ **Date:** _____

WHAT I CAN DO TODAY I can read primary sources about Dred Scott — House & Divided, weigh who made each one and why, and use evidence to answer historical questions.

Directions. A ruling is a primary source like any other. Read the majority opinion and the dissent, and pin down exactly what each one argues

THE SOURCES

SOURCE A · THE MAJORITY · CHIEF JUSTICE TANEY — The Court's decision

> *"[Black Americans] had for more than a century before been regarded as beings of an inferior order … so far inferior, that they had no rights which the white man was bound to respect. … [The Missouri Compromise, banning slavery in the territories,] is not warranted by the Constitution, and is therefore void."*
> *— Dred Scott v. Sandford, majority opinion, 1857. Public domain*

— Dred Scott v. Sandford, majority opinion, 1857. Public domain.

SOURCE B · THE DISSENT · JUSTICE BENJAMIN CURTIS — The justice who disagreed

> *"At the time of the ratification of the … Constitution, all free native-born inhabitants of … New Hampshire, Massachusetts, New York, New Jersey, and North Carolina, though descended from African slaves, were not only citizens of those States, but such of them as had the other necessary qualifications possessed the franchise of electors [the right to vote] … on equal terms with other citizens."*
> *— Dred Scott v. Sandford, Curtis dissent, 1857. Public domain*

— Dred Scott v. Sandford, Curtis dissent, 1857. Public domain.

YOUR WORK

QUESTION 1 STEP 1 · WHAT IT SAYS

Source A shut three doors (see the lesson). In your own words, list the three things the Court decided.

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QUESTION 2 STEP 2 · SOURCE AGAINST SOURCE

Taney claims Black Americans were never meant to be citizens. How does Justice Curtis's dissent (Source B) directly disprove that claim with historical evidence?

QUESTION 3 STEP 2 · SOURCE AGAINST SOURCE

Why did this ruling make the Missouri Compromise — and "popular sovereignty" — suddenly meaningless?

- ☐ A. because it freed Dred Scott
- ☐ B. because it only applied to Missouri
- ☐ C. because if slavery couldn't be banned in any territory, no law or vote could keep it out
- ☐ D. because it abolished the Supreme Court

QUESTION 4 STEP 3 · WHY IT MATTERS

The Court hoped this ruling would end the slavery fight. Instead it made war more likely. In two or three sentences, explain why a decision meant to settle the question only inflamed it.

TEACHER ANSWER KEY — Dred Scott — House & Divided

QUESTION 1: Open response.

Look for a response along the lines of: "1) … 2) … 3) …"

QUESTION 2: Open response.

Look for a response along the lines of: "Curtis points out that at the founding, Black citizens in several states could even…"

QUESTION 3: **Correct — C. because if slavery couldn't be banned in any territory, no law or vote could keep it out**

Exactly. If Congress itself can't ban slavery in a territory, then neither a federal law (the Missouri Compromise) nor a territory's own vote (popular sovereignty) can keep slavery out. The Court said slavery could go anywhere.

QUESTION 4: Open response.

Look for a response along the lines of: "The ruling backfired because…"